Ouida v Oksanna [2024] DIFC SCT 256

JUNE 24, 2025 SCT - JUDGMENTS AND ORDERS

Claim No. SCT 256/2024

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

OUIDA

Claimant/Applicant

and

OKSANNA

Defendant/Respondent

ORDER WITH REASONS OF H.E. JUSTICE ANDREW MORAN

UPON reviewing the Judgment, Order and Reasons of H.E Justice Maha Al Mheiri of 22 April 2025 (the "Judgment")

AND UPON reviewing the Claimant's Appeal Notice and Application for Permission to Appeal (the "Application") the Judgment issued on 6 May 2025

AND UPON reviewing the documents and evidence submitted in the Court file

AND PURSUANT TO the Rules of the DIFC Courts (the "RDC")

IT IS HEREBY ORDERED THAT:

1. The Application is refused

2. The Applicant may not request that this decision be reconsidered at a hearing

3. There shall be no order as to costs.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 24 June 2025

At: 2pm

SCHEDULE OF REASONS

1. By an Appeal Notice issued on 6 May 2025, including the required Application for Permission to Appeal, the Claimant/Applicant and intending Appellant, Ouida, seeks permission to appeal the Judgment of H.E. Justice Maha Al Mheiri sitting in the Small Claims Tribunal (the "SCT" or the "lower court"), of 22 April 2025.

2. The Judgment was made dismissing certain claims for relief brought by the Claimant (recited at paragraph 12 of the Judgment) against the Defendant, which he claimed arose in consequence of his alleged registration for, and use of the Defendant's services including receiving and sending funds, on and from 11 February 2024. The Judge's principal findings in dismissing the claims were as follows:

(a) The Claimant was not a user of the Defendant, but of Oksanna LLC , a separate legal entity licensed by the UAE Central Bank;

(b) The Terms and Conditions governing the Claimant's relationship with Oksaana LLC were accessible prior to the brief technical incident and were provided to the Claimant upon request thereafter;

(c) The March 2024 Terms and Conditions were not substantively altered, and the discrepancy in their stated effective date was a minor administrative error that was promptly corrected;

(d) The Claimant has not identified any specific term within the Terms and Conditions which caused him prejudice, nor demonstrated how the temporary unavailability of the page resulted in any material impairment of rights or obligations; and

(e) The Claimant remains an active account holder, and has not opted to terminate the relationship with Oksanna LLC.

3. After reviewing and relying on the Dubai Financial Service Authority's decision that it would take no further action against the Defendant in response to the Claimant's complaints to it of breach of financial services regulations, she concluded that no financial loss or reputational damage has been established by the Claimant, and that there was no basis for a finding of liability against the Defendant.

4. Under RDC 53.87, the "Court", meaning the Court to which an appeal is made, will allow an appeal where the decision of the lower court was:

"(1) wrong;

(2) unjust because of a serious procedural or other irregularity in the proceedings; or

(3) wrong in relation to any other matter provided for or under any law."

5. By RDC 53.89, an application for permission to appeal a decision of the SCT, must be made to the Court of First Instance in a particular form, and under RDC 53.91, permission to appeal may only be granted by me as a judge of the Court of First Instance:

> "Where:
>
> (1) the Court considers that the appeal would have a real prospect of success; or
>
> (2) there is some other compelling reason why the appeal should be heard."

6. Application of that test, or satisfaction that its requirements have been met, obviously requires a prospective inquiry and assessment. In short, an applicant/intending appellant must show that there is a real (i.e. a realistic as opposed to a fanciful) prospect of persuading an Appeal Court, that the judge of first instance, in the Small Claims Tribunal was wrong in what she decided. This requirement must be satisfied by the grounds of appeal advanced, and the written submissions made showing that the Judge erred in her findings and decision.

7. By his grounds of appeal, the Claimant first identifies the two essential findings on which the Judgment dismissing his claims was founded, at paragraphs 24 (a) (the "not a user" finding - as I will describe it for shorthand purposes) and 28 (the "no loss or damage" finding), of the Judgment. If there is no realistic prospect of Judge being found to be wrong in relation to both or either one of those findings, any appeal on the merits is bound to fail.

8. Whilst the Claimant expounds at length about how the Judge ought to have concluded to the contrary of the "not a user" finding she made, the Applicant fails to demonstrate it was not a finding she was entitled to reach on the evidence before her. An appeal against a decision of the SCT is by way of a review; it is not by way of a re-hearing of the case. The Judge was entitled to find that the Claimant had contracted with a different Oksanna entity. There was an evidential basis for that finding. The Applicant's reliance on the Order with Reasons of SCT Judge Maitha AlShehhi, given on 8 November 2024, dismissing the Defendant's jurisdictional challenge is completely mis-placed as the following extractions from her judgment, with highlights added, make clear:

> "21. I do not propose on making a final determination on the Claim as the purpose of the jurisdiction hearing is to determine **whether the DIFC Courts have jurisdiction to hear the Claim, meaning whether it falls within the jurisdictional gateways of the DIFC**.
>
> 22. Therefore, **I will not be looking at the merits of the case or delivering a final judgment on this case**.
>
> "(1) The Court of First Instance shall have exclusive jurisdiction to hear and determine:
>
> (a) Civil or commercial claims and actions to which the DIFC or any
>
> DIFC Body, DIFC Establishment or Licensed DIFC Establishment is a party;
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26. For cases to be heard in the SCT, first, **they must first fall within the DIFC Courts' jurisdiction by engaging any of the jurisdictional gateways set out in the abovementioned Article.**

27. **The Claimant provided sufficient evidence** that the Defendant is indeed a DIFC Establishment and was still regulated by the DFSA up until 25 March 2024 while the Claimant entered into an agreement with the Defendant on 11 February 2024.

All that the Judge did in so finding, was to hold that there was "sufficient evidence" for the claims to pass through a jurisdictional gateway; and, as she expressly stated, she was not looking at the merits of the case or delivering a final judgment on it – in particular, as to the entity with which the Claimant had contracted. There was no "error" or "overreach" by the Judge nor any inconsistency in her Judgement with the dismissal of the challenge to the Court's jurisdiction.

9. As for the "no loss or damage finding", the Applicant in his grounds (paragraph 2) first admits that he never claimed or suggested there was any financial loss or reputational damage and then (whilst referring to legal bases for claims for damages) completely fails to identify any "harm" that had caused him loss or damages recoverable in the claim he brought before the SCT. I have looked at paragraph 73 and the table following, of his filing dated 29 November 2024, which is entitled "Evidence in Addition to Amended Particulars of Claim", and the expanded or omitted claims there set out. There is no articulated basis for, or quantification of the monetary claims set forth there beyond mere assertion of entitlement; and there is no jurisdictional basis or power of the judge demonstrated, for ordering the non-monetary claims for relief, which it is suggested the Judge was wrong not to order.

10. On the final page of the Appeal Notice, the Applicant has advanced a case of procedural irregularity and/or that there is some other compelling reason why an appeal should be heard because it sets a dangerous precedent on four grounds. As to the allegation of procedural irregularity, I am entirely satisfied that there is no basis whatsoever for that allegation. The Claimant was afforded the fullest of opportunities to present his case and he did so in extenso - but without demonstrating any merit in it, as the Judge was entitled to find on the totality of the evidence before her. A judgment of a Judge sitting in the SCT is not required to recite and deal with every argument and piece of evidence placed before the Judge – especially those so devoid of merit or irrelevant to the exercise of the Court's jurisdiction (as opposed to that of the DFSA) as to be unworthy of such treatment. The Judge plainly addressed the essential issues arising in the claim brought before her and dealt with them in an admirably fair and succinct manner, before dismissing the claim.

11. As for the contention that the decision sets a dangerous precedent and for that reason an appeal against it should be heard, I am satisfied that there is no merit in any of the four grounds advanced in support of it. The first is a matter for the relevant regulatory authority (and not for a Judge of the SCT dealing with claims for damages and various forms of exorbitant relief outwith her power and jurisdiction to grant). That authority, the DFSA, has exercised its regulatory power and remit and decided to take no action on the claimant's complaints. As to the second, the decision does nothing of the sort alleged. The DFSA and the Court have their own respective and different spheres of

jurisdiction and authority; and only the Claimant has sought to confuse them. The third is manifest nonsense as explained in paragraph 8 above. The fourth likewise; and again, only the Claimant has sought to create unnecessary confusion in the manner of bringing his claim and this appeal, which are without merit.

12. For all of the foregoing reasons, I am satisfied that this Application and any appeal are and would be, “totally without merit” within the meaning of Rule 53.99 of the Rules of the Dubai International Financial Centre Courts. There is no realistic prospect of the Applicant showing the Judgment was wrong or unjust; nor is there any compelling reason why an appeal in this matter should be heard. The Application for permission to appeal is accordingly refused. Furthermore, I am satisfied that it is appropriate to make an order that the Applicant may not request that this decision be reconsidered at a hearing.